

**HOUSE . . . . . No. 5140**

---

**The Commonwealth of Massachusetts**

PRESENTED BY:

***Kenneth P. Sweezey***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

**An Act creating parity among Massachusetts beaches.**

PETITION OF:

| NAME:                     | DISTRICT/ADDRESS:   | DATE ADDED:       |
|---------------------------|---------------------|-------------------|
| <i>Kenneth P. Sweezey</i> | <i>6th Plymouth</i> | <i>10/24/2025</i> |

# HOUSE . . . . . No. 5140

---

By Representative Sweezey of Duxbury, a petition (subject to Joint Rule 12) of Kenneth P. Sweezey relative to the Massachusetts Habitat Conservation Plan. Environment and Natural Resources.

---

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act creating parity among Massachusetts beaches.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

- 1           Notwithstanding any general or special law to the contrary, the Massachusetts Division of
- 2 Fisheries and Wildlife shall not prohibit or exclude any beach management program from
- 3 utilizing all legally authorized shorebird nesting mitigation tools available under the
- 4 Massachusetts Habitat Conservation Plan.